

A welcome move: On Wikipedia and Supreme Court order

Arbitrary takedown **orders** on Wikipedia **will** stifle free flow of information

The Supreme Court, in **quashing** the Delhi High Court's orders against Wikimedia to **take down** a Wikipedia page on the basis of a **defamation** case filed by the news agency, Asian News International (ANI), **has set right** an error by the High Court. A High Court **judgment**, passed on April 2, 2025, **allowed** the taking down of the Wikipedia page by saying that the statements were **defamatory** and were not a **verbatim** reproduction of the text in the references that it quoted; that the references were themselves "editorials" or "opinionated articles" and that being an encyclopaedia, Wikipedia carried a "higher responsibility". The **reasoning** is problematic as the references are based on long form reporting and quotes from independent investigators, and are not "opinions" or "editorials" as the High Court made them out to be. The Court has clearly **differed** with the High Court's reasoning by observing that the takedown order was based on too wide a prayer, and noted that the **directions** to remove all false, **misleading** and defamatory content **were** too broadly worded. The **Bench** has now **directed** the news agency to make a fresh **plea** to the High Court **pointing out** specific portions to be removed from the webpage. The **fact** that Wikipedia is an Internet **intermediary** which enjoys **safe harbour** provisions as the content creation and **moderation** are handled by users of its site **should** suggest that any **wide-ranging** takedown order could punish the very model on which the encyclopaedia operates.

Wikipedia is a community-driven encyclopaedia freely available on the Internet and is maintained by volunteers across the world. Even if the quality of articles is not **uniform**, their editors generally include experts and Wikipedia allows users to edit the content provided they **stick to** site guidelines. **Disputes** on content **leading to** "editing wars" **are** generally resolved by discussions on the page and measures such as placing the page on "extended confirmed protection" or "full protection", allowing only "extended confirmed users" for **the former** and administrators for **the latter** to make changes. These users are not selected by Wikimedia but elected by community members based on their prior editing activity and reputation. These processes have ensured a significant degree of reliability on the encyclopaedia, even as it has become a **repository** of more than 62.95 million articles in over 350 languages. In asking for the takedown of articles by interpreting critical information as defamation and by even threatening **penal** action against Wikipedia, judicial actions could **unwittingly** lead to the **stifling** of open discussion of entities on the encyclopaedia, **thereby** acting against the interest of the free flow of information.

[Practice Exercise]

- Red/blue coloring of words in the sentence indicates subject verb relationship; where 'red' denotes 'subject' and 'blue' denotes 'verb'.

Vocabulary

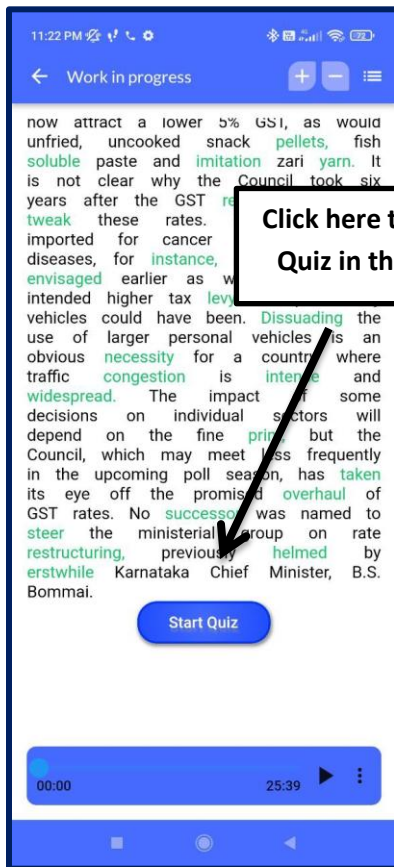
1. **Arbitrary** (adjective) – random, capricious, inconsistent, irrational, subjective मनमाना
2. **Takedown** (noun) – removal, deletion, withdrawal, dismantling, suppression हटाना
3. **Stifle** (verb) – suppress, restrain, smother, curb, choke दबाना
4. **Quash** (verb) – nullify, overturn, annul, revoke, reject रद्द करना
5. **Take down** (phrasal verb) – remove, delete, pull down, eliminate, erase नीचे उतारना / हटाना
6. **Defamation** (noun) – slander, libel, character assassination, calumny, vilification मानहानि
7. **Set right** (phrasal verb) – correct, rectify, amend, fix, remedy सुधारना
8. **Defamatory** (adjective) – slanderous, libelous, insulting, injurious, scandalous अपमानजनक / मानहानिकारक
9. **Verbatim** (adjective) – word-for-word, exact, literal, precise, direct शब्दशः
10. **Reasoning** (noun) – logic, argumentation, rationale, explanation, justification तर्क
11. **Differ** (verb) – disagree, contrast, vary, diverge, dissent असहमत होना / भिन्न होना
12. **Misleading** (noun) – deception, falsehood, misinformation, distortion, misrepresentation भ्रामक सूचना
13. **Bench** (noun) – judges, court, tribunal, panel, judiciary न्यायपीठ
14. **Direct** (verb) – instruct, command, order, guide, mandate निर्देश देना
15. **Plea** (noun) – request, appeal, petition, entreaty, application याचिका
16. **Point out** (phrasal verb) – indicate, highlight, mention, identify, show इंगित करना
17. **Intermediary** (noun) – middleman, facilitator, mediator, agent, conduit मध्यस्थ
18. **Safe harbour** (noun) – legal protection, immunity, safeguard, shield, exemption सुरक्षित आश्रय (कानूनी संरक्षण)
19. **Moderation** (noun) – regulation, control, supervision, oversight, management नियंत्रण / संतुलन
20. **Wide-ranging** (adjective) – extensive, comprehensive, broad, sweeping, all-encompassing व्यापक
21. **Uniform** (adjective) – consistent, identical, standard, homogeneous, even समान / एकरूप

22. **Stick** (to) (verb) – adhere, follow, comply, abide, conform पालन करना
23. **Lead** (to) (verb) – result in, cause, bring about, induce, produce कारण बनना
24. **The former** (noun) – the first mentioned, previous, earlier, preceding पूर्ववर्ती
25. **The latter** (noun) – the last mentioned, subsequent, latterly stated, second बाद वाला
26. **Repository** (noun) – storehouse, archive, depository, collection, bank संग्रह / भंडार
27. **Penal** (adjective) – punitive, disciplinary, corrective, retributive, legal दंडात्मक
28. **Unwittingly** (adverb) – unknowingly, unintentionally, inadvertently, unconsciously, accidentally अनजाने में
29. **Stifling** (noun) – suppression, choking, restriction, suffocation, constraint दम घोटने वाली प्रक्रिया
30. **Thereby** (adverb) – thus, hence, as a result, consequently, by that इस प्रकार / इसके द्वारा

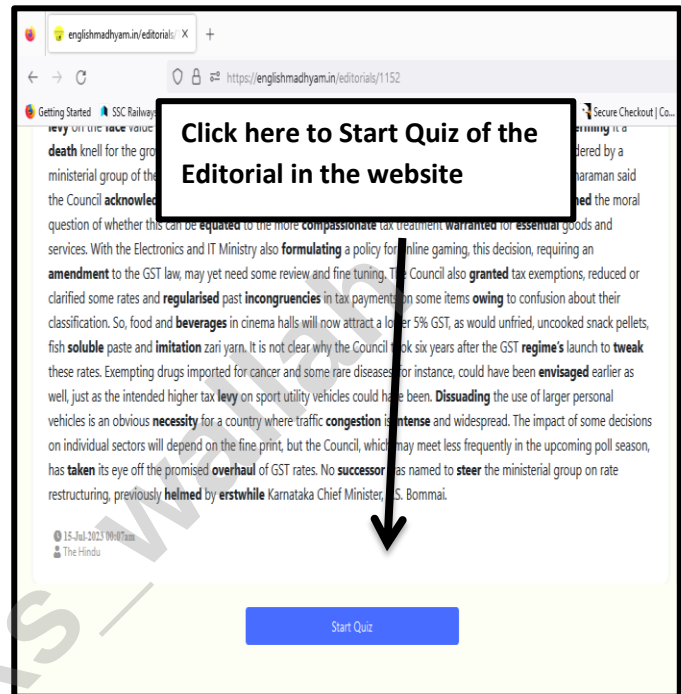
Summary of the Editorial

1. **Supreme Court Intervention** – The Supreme Court reversed a Delhi High Court order that directed Wikipedia to remove a page based on a defamation case by ANI.
2. **High Court Error** – The High Court wrongly judged the Wikipedia content as defamatory and claimed it didn't directly reproduce its sources.
3. **Mislabeling of References** – The High Court misclassified cited sources as "editorials" or "opinion pieces," while they were actually based on investigative reporting.
4. **Problematic Reasoning** – The High Court's expectations of higher responsibility from Wikipedia as an encyclopaedia were deemed problematic by the Supreme Court.
5. **Overbroad Takedown** – The Supreme Court criticized the takedown request for being too general and lacking specificity.
6. **New Plea Allowed** – The Court allowed ANI to file a fresh, more targeted plea, identifying exact portions they consider defamatory.
7. **Safe Harbour Protection** – Wikipedia, as an Internet intermediary, enjoys legal protections under safe harbour provisions since its content is user-generated.
8. **Threat to Model** – Broad takedown orders threaten the community-driven, decentralized model on which Wikipedia is built.
9. **Volunteer-Driven** – Wikipedia is maintained by global volunteers, not by a centralized editorial team.
10. **Editorial Safeguards** – Content disputes are resolved through collaborative discussions and protection measures, ensuring quality control.
11. **Community-Based Governance** – Editors with special permissions are selected by the Wikipedia community based on experience and trust.
12. **Global Reach** – Wikipedia hosts over 62.95 million articles in more than 350 languages, demonstrating its vast global influence.
13. **Reliability Maintained** – Despite some unevenness in article quality, Wikipedia maintains a good level of credibility due to its editorial processes.
14. **Risk to Free Information** – Labeling critical information as defamation and pursuing legal penalties could suppress open public discourse.
15. **Support for Free Expression** – The Supreme Court's decision safeguards the free flow of information and protects collaborative knowledge platforms like Wikipedia.

Practice Exercise: SSC Pattern Based



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